



Nebraska Democratic Party Constitution & Bylaws

Last revised January 18th, 2026

CONSTITUTION

PREAMBLE

We, the members of the Nebraska Democratic Party in order to advance the principles of social justice and democracy, to uphold human and civil rights and constitutional government, to affiliate with and advance the interests of the National Democratic Party, to aid in the election of Democratic officials, and to organize and perpetuate a representative and effective party organization in the State of Nebraska, do establish this constitution for the Nebraska Democratic Party.

ARTICLE I - AUTHORITY

This Constitution supersedes any and all other previous constitutions and/or Bylaws and/or procedures of the Nebraska Democratic Party. This Constitution is the supreme governing document of the Nebraska Democratic Party unless in violation of any Nebraska election law; United States election law; or the charter, bylaws, or procedures of the Democratic National Committee (DNC), in which case the conflicting part is superseded.

ARTICLE II - NAME OF THE PARTY

The name of this organization shall be the Nebraska Democratic Party (NDP).

ARTICLE III - MEMBERSHIP OF THE PARTY

All registered Democrats who are residents of the State of Nebraska are members of this party.

ARTICLE IV - ORGANIZATION OF THE PARTY

Section 1. State Convention

A. Authority. The State Convention is the supreme governing body of the Nebraska Democratic Party. The State Chair shall call a biennial convention during general election years on a date approved by the State Central Committee.

B. Membership. Delegates to the State Convention shall be apportioned equitably by the State Central Committee under Bylaws of the Nebraska Democratic Party and elected at the biennial general election year County Conventions. In addition, elected officers of the Nebraska Democratic Party shall be automatic delegates to the State Convention.

C. Functions. The State Convention shall adopt a party platform, elect the State Chair and Vice Chair when necessary to assume office the day after the General Election, elect the two National Committeepersons when necessary, elect State Central Committee representatives, and transact such other business as may be prescribed by law or may come before the convention.

Section 2. State Central Committee

A. Authority. The State Central Committee (SCC) shall be the policy-making body of the state party during the interim between state conventions, and shall be responsible for the building of the Nebraska Democratic Party. The State Central Committee shall promote the implementation of the party platform and the election of Democratic candidates. The State Central Committee shall be the ruling authority in the interpretation and defense of the Constitution and Bylaws of the Nebraska Democratic Party during the interim between State Conventions. The State Central Committee shall have the authority to adopt and revise Bylaws governing its organization and the organization and function of committees subordinate to it.

B. Membership. Membership shall include State Party Officers, State Executive Committee voting members, a designated representative of each Affiliated Policy Council recognized by the State Central Committee as provided in

the Bylaws, delegates and alternates as apportioned by the State Central Committee according to the Bylaws, and at-large delegates nominated by the State Executive Committee with confirmation by the State Central Committee as apportioned according to the Bylaws. Membership shall be limited to active Party members.

C. Meetings.

1. The State Central Committee shall meet a minimum of four times per year.
2. The times and places of regular meetings shall be fixed by the State Chair. Special or additional meetings may be called by the State Chair or by a petition of 15 percent of the State Central Committee members in a manner consistent with the Bylaws of the State Party. A quorum shall consist of forty-nine (49) members excluding unseated alternates.

D. Committee. The State Central Committee shall have the authority to establish standing or special committees as prescribed under the Bylaws of the Party.

Section 3. State Executive Committee

A. Authority. The State Executive Committee (SEC) shall be authorized to execute the policies and procedures of the State Central Committee during the interim between State Central Committee meetings. Decisions by the State Executive Committee shall be reported to the State Central Committee at its next meeting with the understanding that these decisions may be reviewed, revised, or reversed. The State Executive Committee shall be responsible ultimately to the State Central Committee for its actions.

B. Membership. The State Executive Committee shall consist of the following as voting members of the Committee:

1. All Officers of the Party as provided in Article IV, Section 5 of this Constitution and any other appointed or elected member to the Democratic National Committee from Nebraska;

2. A designated representative from each Affiliated Caucus Organization recognized by the State Central Committee as provided in the Bylaws;
3. If appointed, the Finance Chair and/or two At-Large members who shall be nominated by the State Chair and confirmed by the State Central Committee, such members to serve at the pleasure of the State Chair;
4. The Bylaws of the Party may provide for ex-officio, non-voting members of the State Executive Committee.

C. Meetings. The State Executive Committee shall meet at least quarterly. The times and places of regular meetings shall be fixed by the State Chair. Special meetings may be called by the State Chair or by a petition of the State Executive Committee members in a manner consistent with the Bylaws of the State Party. A quorum shall consist of 50 percent of the voting membership.

Section 4. Congressional District Organization

A. Authority. In order to improve the success of the Nebraska Democratic Party within a Congressional District, a Congressional District Organization (CDO) may be formed. The goals of a CDO shall be to enhance communication between and amongst the county parties, improve and facilitate communication between the county parties and the NDP, better the organization and effectiveness of the county parties, implement policies and programs of the State Party, aid in the election of Democrats to public office within the CDO, and do such activities as requested by the NDP.

B. Membership. County Party Officers and SCC members and alternates shall be members of the CDO of the Congressional District in which they reside. A CDO may provide for additional members as long as those members are registered Democrats within the Congressional District.

C. Governance. The Chair of a CDO shall be the Congressional District Chair of the Congressional District which the CDO represents. The Vice Chair of a CDO shall be the Congressional District Vice Chair of the Congressional District which the CDO represents. The CDO may have additional officers as it provides. The CDO may adopt governing documents for the effective administration of the

CDO providing that any governing documents adopted are consistent with the Constitution and Bylaws of the NDP and with the policies and decisions of the SCC. The CDO will coordinate with the NDP Rules Committee Chair when creating these documents. The governing documents must be submitted for approval by the SCC. Changes do not become effective unless approved by the SCC.

D. Meetings. The Chair of a CDO shall call a meeting of the full membership at least once every twelve (12) months. A quorum shall be set in accordance with *Roberts Rules of Order* or a CDO's governing documents.

Section 5. Officers of the Party

A. Titles. The following are the officers of the Nebraska Democratic Party: State Chair, Vice Chair, Vice Chair of County Parties, two National Committeepersons, Congressional District Chairs and Vice Chairs (of different gender identities) of the respective Congressional Districts, State Secretary, and State Treasurer. State Officers must be registered as Democrats and reside within the state. Congressional District Officers must be registered as Democrats and reside within the appropriate Congressional District.

B. Functions.

1. State Chair. The State Chair is the Executive officer of the State Party, and shall be elected by accredited delegates assembled in the State Convention each midterm election year for a four-year term. The State Chair shall carry out all policies and programs of the State Party as determined by the State Convention, the State Central Committee, and/or the State Executive Committee. The State Chair shall also do everything to initiate, to organize and/or promote development of the state Party at every level throughout the State, and shall perform all other such duties as are prescribed elsewhere in this Constitution and/or in the Bylaws of the Nebraska Democratic Party. The State Chair cannot hold elected office other than a party office, run a political campaign for any office other than a party office, or run for office other than a party office during their term.

2. Vice Chair. The Vice Chair shall be elected by the accredited delegates assembled in the State Convention each midterm election year for a

four-year term. The Vice Chair shall be a different gender identity from that of the State Chair and shall temporarily assume the duties of the State Chair in the event of a vacancy in that office. The Vice Chair shall assist the State Chair in carrying out the functions and duties of their office, and cannot hold elected office other than a party office, run a political campaign for any office other than a party office, or run for office other than a party office during their terms.

3. Vice Chair of County Parties. The Vice Chair of County Parties shall be elected by a caucus of county chairs held at the State Convention each midterm election year for a four-year term. The Vice Chair of County Parties shall act as a liaison between the State and County Parties and shall temporarily assume the duties of the State Chair in the event of a vacancy in both the office of State Chair and Vice Chair. The Vice Chair of County Parties cannot hold elected office other than a party office, run a political campaign for any office other than a party office, or run for office other than a party office during their terms.

4. National Committee Representatives. The National Committeepersons (2) of different gender identities shall be elected by the accredited delegates assembled in the State Convention each presidential election year for a four-year term. The National Committee representatives shall reflect the State Party philosophy to the National Committee, shall act as liaisons between the State and National Parties, shall use their public visibility to the best advantage and aid of the State Party and in soliciting financial support for it, and shall perform all other duties as are prescribed by the Nebraska Democratic Party, and by the Bylaws and procedures of the Democratic National Committee.

5. State Treasurer. The State Treasurer shall be nominated by the State Chair and be confirmed by the State Central Committee. The State Treasurer shall act as custodian of all party monies and shall be responsible for all federal and state reporting procedures. In conjunction with the Finance Committee, the State Treasurer shall assist the State Chair, State Central Committee, and State Executive Committee in the preparation of an annual

budget, in periodic budget revisions, and to ensure the financial stability of the Democratic Party.

6. State Secretary. The State Secretary shall be nominated by the State Chair and confirmed by the State Central Committee. The State Secretary shall be responsible for transcribing and disseminating the official record of all Party business, whether before the State Convention, the State Central Committee, or the State Executive Committee.

7. Congressional District Chair. The Congressional District Chair shall be elected by the accredited delegates assembled in the Congressional District Caucus at the State Convention. The Congressional District Chair shall be the Chair of the Congressional District Organization if a CDO is established in a Congressional District. The Congressional District Chair shall carry out all policies and programs of the state Party as determined by the State Convention and the State Central Committee. The Congressional District Chair shall also do everything possible to initiate, to organize and to promote development of the Congressional District in cooperation with the State Chair, and shall perform all other such duties as are prescribed elsewhere in this Constitution and in the Bylaws of the Nebraska Democratic Party.

8. Congressional District Vice Chair. The Congressional District Vice Chair shall be of a different gender identity as the Congressional District Chair, and shall be elected by the accredited delegates assembled in the Congressional District Caucus at the State Convention. The Congressional District Vice Chair shall be the Vice Chair of the Congressional District Organization if a CDO is established in a Congressional District. The Congressional District Vice Chair shall assist the Congressional District Chair and assume temporarily the duties of the Congressional District Chair in the event of a vacancy in that office.

Section 6. County Conventions

A. Single Legislative District Counties. Counties wholly within a single Legislative District shall conduct a county convention in the manner prescribed by

law and complying with any rules and procedures adopted by the State Central Committee as provided in the NDP Bylaws. In the event the state party elects to have delegates to County Convention register with the election commissioner or county clerk, the county party shall provide for delegates to the County Convention to register with their election commissioner or county clerk. The County Convention shall elect a County Chair, County Vice Chair (of different gender identities), County Secretary, County Treasurer and any other officers provided for in the county party constitution or bylaws or as deemed necessary by the County Executive Committee. Each County Convention shall elect delegates and alternates to the State Convention, may adopt resolutions or recommendations for items to be included in the party platform, and may transact other such business as may come before it.

B. Multiple Legislative District Counties. Counties containing all or parts of multiple Legislative Districts shall conduct a county convention in the manner prescribed by law and complying with any rules and procedures adopted by the State Central Committee as provided in the NDP Bylaws. In the event the state party elects to have delegates to County Convention to register with their election commissioner or county clerk, the county party shall provide for delegates to the County Convention register with the election commissioner or clerk. Each Legislative District shall caucus and elect delegates and alternates to the State Convention. The County Convention shall elect a County Chair, County Vice Chair (of different gender identities), County Secretary, County Treasurer, and any other officers provided for in the county party constitution or bylaws or as deemed necessary by the County Executive Committee. Each County Convention may adopt resolutions or recommendations for items to be included in the party platform, and may transact other such business as may come before it.

C. Alternative Conventions. In the event a county party is without an active county party organization, or a county party refuses to conduct a county convention in compliance with any of the rules or procedures adopted by the State Central Committee as provided in the NDP Bylaws, the state party shall conduct a county convention in such county. The state party or any two or more county parties may conduct joint county conventions with prior approval of the State Executive Committee.

Section 7. Congressional District Caucuses

A. Meetings. The State Chair shall call for Congressional District Caucuses to be held at the State Convention and each State Central Committee meeting. The time and place of each shall be established by the Bylaws of the State Party.

B. Membership. Membership at the State Convention caucus shall include the delegates and alternates serving in the place of accredited delegates to the State Convention who reside in each respective district. Membership at State Central Committee meetings shall include all members and alternates of the State Central Committee who reside in each respective district.

C. Business. The Caucuses shall convene to prepare for the business of the State Convention and/or State Central Committee meeting. Caucus business will also include duties provided in this Constitution and Bylaws and any other business as may come before it.

ARTICLE V - VACANCIES

Section 1. When Vacancies Exist

A. A vacancy in any State Party office (including State Central Committee and State Executive Committee members), County Party office, Congressional District Organization office, Standing Committee of the Nebraska Democratic Party, or Special Committee of the Nebraska Democratic Party shall exist whenever an office holder or committee member shall have:

- (a) died;
- (b) resigned in writing to the State Secretary or Assistant Secretary;
- (c) moved from the geographical area or district they were elected to represent;
- (d) changed their party affiliation;
- (e) ceased being an active party member;
- (f) ceased meeting the qualifications outlined in Article III of this constitution;
- (g) been removed from office;
- (h) forfeited office as provided under this section; or

(i) as otherwise provided for in the Constitution and Bylaws of the Nebraska Democratic Party or in the constitution or bylaws of the respective organization as applicable.

B. Members of the State Central Committee, State Executive Committee, Standing Committees, and Special Committees accumulating two absences without notification during their term will constitute forfeiture of office.

C. The State Chair, Vice Chair, or Vice Chair of County Parties holding elected office other than a party office, running a political campaign for any office other than a party office, or running for office other than a party office during their term will constitute forfeiture of office.

Section 2. Filling Vacancies

When a vacancy occurs, it shall be filled following all vacancy notification procedures as established in the Bylaws of the Nebraska Democratic Party and in the following manner:

A. State Chair, Vice Chair, or National Committee Representatives shall be filled through election by the State Central Committee no sooner than 30 days after the vacancy occurs or at the State Convention as directed in the Bylaws of the Nebraska Democratic Party.

B. The Vice Chair of County Parties shall be filled through election by a caucus of county chairs held at a meeting of the State Central Committee.

C. Legislative District State Central Committee delegates and alternates shall be filled through election by the appropriate Congressional District Caucus no sooner than 10 days after the vacancy occurs. In the event a Legislative District is split between more than one Congressional District Caucus, the vacancy shall be filled by the Congressional District Caucus with the greater number of registered Democrats residing in that Legislative District as of the date of the meeting at which the vacancy is filled.

D. At-large State Central Committee delegates shall be filled through nomination by the State Executive Committee with confirmation by the State

Central Committee.

E. State Executive Committee members who are appointed by the State Chair shall be filled through nomination by the State Chair with confirmation by the State Central Committee.

F. Congressional District Chairs or Vice Chairs shall be filled through election by the appropriate Congressional District Caucus no sooner than 30 days after the vacancy occurs.

G. Chairs of NDP Standing Committees shall be filled through nomination by the State Chair with confirmation by the State Central Committee.

H. Members of NDP Standing Committees elected by Congressional District Caucuses shall be filled through election by the appropriate Congressional District Caucus no sooner than 30 days after the vacancy occurs.

I. County Party offices shall be filled pursuant to Nebraska Democratic Party Bylaw 3.

J. Affiliated Caucus Organization and Affiliated Policy Council officers shall be filled as provided for in their governing documents.

ARTICLE VI - AFFILIATED ORGANIZATIONS

Organizations subordinated to and affiliated with the Nebraska Democratic Party or any County Democratic Party shall be recognized and encouraged, provided consent of the State Central Committee or appropriate County Central Committee is obtained. All such affiliated organizations, including but not limited to county parties, affiliated caucus organizations, and affiliated policy councils, shall comply with the provisions of this Constitution and the Bylaws of the Nebraska Democratic Party.

ARTICLE VII - AMENDMENTS

This Constitution may be amended only by a favorable vote of at least two-thirds (2/3) of the accredited delegates assembled in the State Convention, provided such amendment has been presented in writing to the State Central Committee thirty (30) days prior to the State Convention. All amendments shall take effect upon adoption by the State Convention. When one section of the Constitution or Bylaws is amended in two or more

proposed amendments at the State Convention and the amendments are entirely reconcilable and not in conflict with each other, the Rules Committee shall be authorized to correlate them so as to reflect all such amendments. The Rules Committee shall be authorized to periodically review the Constitution and Bylaws for grammar, spelling, punctuation, enumeration, technical and conforming changes and may make these types of changes that retain the meaning of the language of these documents.

ARTICLE VIII - NO PROXY OR UNIT RULE VOTING

No voting by proxy shall be allowed nor shall the unit rule be applied to any level of party organization.

ARTICLE IX - PARLIAMENTARY AUTHORITY

All procedural matters not directly governed by this Constitution or by the Bylaws of the Nebraska Democratic Party shall be governed by the latest edition of *Robert's Rules of Order*, as most recently revised.

ARTICLE X - REMOVAL OF PARTY OFFICIALS

Section 1. Removal or Suspension Arising from Special Committee Report

Upon the report of a Special Committee formed pursuant to the NDP Bylaws for the purpose of investigating alleged misconduct injurious to the NDP or its members, any duly elected or appointed party official at any level of the Nebraska Democratic Party, including but not limited to any State or County Central Committee Member, any Standing or Special Committee Member, or any officer of the NDP, Congressional District Organization, County Party, Affiliated Caucus Organization, or Affiliated Policy Council, may be removed by a 2/3 (two-thirds) vote of the State Central Committee. Further, pending investigation by such Special Committee and in an emergency situation requiring immediate action to preserve the reputation and integrity of the NDP between State Central Committee meetings, any such party official may be temporarily suspended by a 2/3 (two-thirds) vote of the State Executive Committee until the next State Central Committee meeting.

Section 2. Removal of State Party Officers

Removal of an officer of the Nebraska Democratic Party shall also be considered upon petition of 25 percent of the members of the State Central Committee, provided that of the minimum required petitioning members, at least 20 percent reside in each Congressional District. Upon delivery of a removal petition to the State Secretary, a special meeting of the State Central Committee shall be called to consider the removal petition, unless a regular meeting is scheduled within thirty days of receipt of the petition. Grounds for removal of an officer of the Nebraska Democratic Party under this section shall be violation of this Constitution or the Bylaws, or conviction of a felonious crime against the State of Nebraska and/or United States of America, or actions or omissions detrimental to the Party. A majority of those members in good standing of the Central Committee present shall be required to affect a removal.

Section 3. Removal of Congressional District Officers

Removal of Congressional District Officers shall also be considered upon petition of 25 percent of the members of the State Central Committee Congressional District Caucus. Upon delivery of a removal petition to the State Secretary, a special meeting of the State Central Committee Congressional District Caucus shall be called to consider the removal petition, unless a regular meeting is scheduled within thirty days of receipt of the petition. An officer may be removed by a majority of those members present at the meeting. Grounds for removal under this section shall be the same as for Nebraska Democratic State Party officers.

BYLAWS

BYLAW 1 - STATE CONVENTION

1.1 General

1.1.1. Official Acts of Nebraska Democratic Party. The determination of a State Convention conducted in accordance with the Constitution and Bylaws of the Nebraska Democratic Party shall be the official acts of the Nebraska Democratic Party.

1.1.2. Composition. The State Convention shall be composed of accredited delegates (and alternates) elected every two (2) years by accredited delegates of County Conventions in accordance with an apportionment formula developed by the State Central Committee. The apportionment formula shall allocate a specified number of delegates amongst the counties based upon an equal weighting of the following factors in each county against statewide totals: the vote for the Democratic candidate for Governor in the last General Election in which a Governor was elected; the vote for the Democratic candidate for President in the last General Election in which a President was elected; and the number of registered Democrats as of December 31st of the year preceding the election year. In the event that one or more factors cannot be reasonably determined, the State Central Committee may develop a comparable alternative factor to be used to allocate delegates. Final delegates totals allocated to each county shall be adjusted to ensure that within each county there is at least one delegate from each county and one delegate from each congressional district and legislative district within the county. Elected officers of the Nebraska Democratic Party shall also serve as delegates, without alternates, to State Convention.

1.1.3. Time and Place of Convention. The State Convention shall be called in the manner and at the time and place as specified by the State Central Committee except that two (2) successive conventions shall not be held in the same city.

1.1.4. Temporary Officers. The State Convention shall be called to order by the State Chair who shall preside until a Permanent Convention Chair is elected. The State Secretary shall act as Convention Secretary until a Permanent Convention Secretary is elected. In absence of the State Secretary, the State Chair shall designate someone to act as Convention Secretary until the Permanent Convention Secretary is elected.

1.1.5. Officers of the Convention. The permanent officers of each State Convention shall be as follows: Chair, Vice-Chair, Secretary and Sergeant-at-Arms.

1.1.6. Chair of State Convention. In the absence of the Convention Vice Chair or Convention Secretary, the Convention Chair may appoint a delegate or alternate to serve in such role temporarily. No appeals from a decision of the Chair are in order on (a) recognition, (b) in response to dilatory motions, or (c) during roll call. The Chair shall not decide hypothetical questions or inquiries not directly raised

by the proceedings. The Chair may direct the Sergeants-at-Arms to remove disorderly spectators.

1.1.7. Nomination and Election of Permanent Officers. The State Convention Committee shall nominate Permanent Officers, and may nominate additional deputy officer positions as deemed necessary. In addition, nominations for Permanent Officers may be made from the floor by any duly accredited delegate. Permanent Officers shall be elected by a majority of the votes cast on such nominations.

1.1.8. Delegates and Alternates. The County Conventions shall elect delegates and alternates to the State Convention and may prescribe the terms and conditions under which the alternates shall act in the absence of a delegate or delegates. In the absence of prescribed terms and conditions from the County Convention, the delegates present from each county shall designate the terms and conditions under which the county's alternates shall act as delegates.

1.1.9. Certification. Prior to the convening of the State Convention, and as soon as practicable after adjournment of the County Convention, the Chair and Secretary of each county party shall certify to the State Secretary the names and addresses of all delegates and alternates elected to represent such county at the State Convention. Copies shall be delivered to the Committee on Credentials and Convention Secretary.

1.1.10. Credentials. The Committee on Credentials shall prepare and file with the Convention Secretary the names and addresses of all delegates and alternates duly accredited to the State Convention. In the event of contest to the credentials of any delegate or alternate, the Committee on Credentials may require Certificates of Election or additional information from the officials of the proper county party.

1.1.11. Order of Business. The order of business at all State Conventions shall be, as far as possible, as follows:

- (a) Call to Order by State Chair;
- (b) If necessary, adjournment to hold Congressional District Caucuses to elect members of Convention Committees;

- (c) Convention Committees leave the assembly room for committee meetings, if needed;
- (d) Caucuses of delegations to select delegation chairs and vice chairs pursuant to Bylaw 1.1.12;
- (e) Roll Call;
- (f) Report of Committee on Credentials;
- (g) Adoption of Convention Rules and Convention Agenda;
- (h) Report of State Convention Committee and election of permanent officers of convention;
- (i) Address of Permanent Convention Chair;
- (j) Adjournment to hold Congressional District Caucuses to elect Congressional District Chairs and Congressional District Vice Chairs;
- (k) Caucuses of the delegates by Legislative Districts to select members of the State Central Committee;
- (l) Convention reconvenes after Congressional District and Legislative District Caucuses;
- (m) Report of the Nominations Committee and election of State Chair, Vice Chair, and National Committee Representatives (if positions are up for election);
- (n) Report of the caucus of county chairs on the election of the Vice Chair of County Parties;
- (o) Report of the Presidential Electors Committee and selection of presidential electors (in Presidential Election Years only);
- (p) Reports of other Standing Committees except the Platform and Resolutions Committee;
- (q) Report of the Platform and Resolutions Committee and action thereon;
- (r) Other business;
- (s) Adjournment.

Introduction of candidates and elected officials and/or speeches from such candidates and elected officials will be at the Convention Chair's discretion.

1.1.12. County and Legislative District Delegations. The delegates attending the State Convention from each county that does not contain two (2) or more Legislative Districts shall elect a chair and vice chair of such delegation. Where a county contains two (2) or more Legislative Districts, the delegates attending the convention from each such district shall elect a chair and vice chair. A delegation chairperson shall: (a) call and preside at any district caucus; (b) poll the delegation; and (c) announce the results of such poll during the convention. A delegation vice chairperson shall act in the capacity of the delegation chair in the chair's absence.

1.1.13 Vacancies

1.1.13.1. Vacancies Defined. A vacancy in the office of delegate or alternate to a State Convention shall exist whenever a duly elected delegate or alternate from any Legislative District or County shall have: (a) died; (b) resigned in writing filed with the County Secretary or State Secretary; (c) moved from the Legislative District or County which they were elected to represent; or (d) changed their party affiliation. Further, vacancies shall exist when a County Convention fails to elect sufficient delegates and/or alternates to fill the number of delegate or alternate positions allocated to such county pursuant to Bylaw 1.1.2.

1.1.13.2. Filling Vacancies. Prior to the date of any State Convention, when it appears that there is a vacancy, as defined in Bylaw 1.1.13.1, the County Central Committee of a county may elect, from the proper Legislative Districts, delegates and alternates to the State Convention to fill such vacancies as exist in such county.

1.1.13.3. Certification of Vacancies. Prior to the convening of any State Convention, the Chair and Secretary of each county party shall certify to the State Secretary the names of all delegates and alternates who have been elected to fill vacancies in the manner provided for in Bylaw 1.1.13.2 and shall state in such certification the cause for each such vacancy.

1.2 Quorums, Majorities, Percentages

1.2.1. Quorum. A majority of the total number of delegates elected by the County Conventions to serve as delegates to the State Convention or of a

Congressional District Caucus at the State Convention shall constitute a quorum.

1.2.1.1. Business When Quorum Present. When a quorum is once established, a State Convention may thereafter transact any business which may properly come before it.

1.2.1.2. Business in Absence of Quorum. In the event that no quorum is present when a State Convention is called to order, such convention may proceed to elect permanent officers and to hear addresses, and in the event no quorum is then present may adjourn to a fixed time and place, which shall be no later than ten (10) days from the date such adjournment is taken, and no other business shall be conducted by such convention in absence of quorum.

1.2.1.3. Ascertainment of Quorum:

By Chair. The Chair of any State Convention or Congressional District Caucus at State Convention may ascertain by their view whether or not a quorum is present.

By Roll Call. If the point of order is raised that no quorum is present, the ascertainment of a quorum shall be determined by roll call, but those who are outside of the convention hall may be counted in determining whether or not a quorum is present, and the Chair shall have the authority to appoint Sergeants-at-Arms to gather such persons into the convention hall before the count is completed.

1.2.1.4. Procedure in Event of Withdrawal of Members from Convention Hall After Quorum Established.

In the event that any delegates who were present in a State Convention at the time the Chair declared a quorum to be present shall absent themselves from the convention hall for any reason whatsoever, such convention shall proceed to transact its business the same as though a quorum were present at all times and Bylaws 1.2.2 and 1.2.3 shall govern determination of any action taken by the delegates.

1.2.2. What Constitutes a Majority. A Majority is one (1) more than half; if half is a fraction, then the next whole number constitutes one (1) more than half. A

majority of all votes cast on any motion shall be sufficient to pass such a motion unless otherwise required.

1.2.3. Determination of Percentages. When a certain percentage of votes cast are required by a convention to determine any question, such percentage shall be computed on the basis of all of the votes cast upon the question under consideration.

1.3 Committees

1.3.1. Standing Committees. The standing committees for State Convention shall be as follows: (a) Committee on Credentials; (b) Committee to Recommend Nominations of Presidential and Vice Presidential Electors (only during presidential election years).

1.3.2. Selection of Convention Committees. Prior to the convening of each State Convention, the Chair of each convention standing committee shall be selected by the State Executive Committee with the approval of the State Central Committee. At a time and place designated by the State Chair during a State Central Committee meeting scheduled at least sixty (60) days prior to the Convention, the members of the State Central Committee shall hold caucuses by Congressional District to elect temporary members of the convention standing committees. In each such Congressional District Caucus, the members of the State Central Committee shall elect two (2) members to serve on the Committee on Credentials, and two (2) members to serve on the Committee to Recommend Nominations for Presidential and Vice Presidential Electors. The District Chair and Vice Chair of each Congressional District caucus shall promptly certify to the State Secretary the temporary members elected to serve on the convention standing committees. In order to serve as a permanent member of a Convention Committee, a temporary member must attend the Convention as a delegate or alternate. Any temporary member not elected as a delegate or alternate to State Convention shall be replaced by their Congressional District Caucus at Convention.

1.3.3. Duties. The duties of the standing committees of the State Convention shall be as follows:

1.3.3.1. Credentials. The Committee on Credentials shall pass upon the qualifications of the delegates and alternates elected to attend the State

Convention, rule upon any contest to the credentials of any delegate or alternate, and certify to the Convention Secretary the duly qualified delegates and alternates.

1.3.3.2. Elector Nominations. The Committee to Recommend Nominations for Presidential and Vice Presidential Electors (only during presidential election years) shall nominate to the State Convention the number of presidential electors to which the State of Nebraska shall be entitled at the following Presidential election. For Congressional District electors the Committee shall accept the selection of each Congressional District Caucus. For at-large electors, the Committee shall give preference to the recommendations of each Congressional District Caucus. Nominations may be made from the floor of the Convention by any duly accredited delegate.

1.3.3.3. Minority Reports. The report of the minority of the members of any Convention Committee or Standing Committee shall be considered by the State Convention if signed by one-third of the members of such committee and offered as a substitute for the majority report.

1.4 Rules of Order

1.4.1. Motion to Adjourn. A motion to adjourn or a motion to adjourn to meet at a designated time may be made at any time recognition is secured for that purpose, but is not in order during a roll call. A simple motion to adjourn is not debatable and may not be laid on the table, but a motion to adjourn at a certain time is debatable and subject to amendment. A motion to adjourn to a day certain to meet at another place is in order and may be decided by a majority vote.

1.4.2. Amendments. Amendments to any motion may be made orally, but before consideration thereof must be submitted in writing and must be germane to the propositions to which offered. Majority and minority reports from committees are subject to amendment from the floor.

1.4.3. Roll Call. The roll call shall be called by Counties, and Districts within Counties, and the Chair of the County or District delegation shall take the poll and announce the vote.

1.4.4 Challenges

1.4.4.1. Challenges From Within Delegation. On roll call by Counties and Districts within Counties, a delegation shall be polled on challenge by any member of the delegation. Demand for poll of delegation or challenge of accuracy of count must be made when vote is reported and comes too late after the next County, or District within a County, is called. Such demand may not be made by anyone not a member of the delegation and no delegate may request a poll of any other delegation than their own. The only method by which a poll of a delegation may be had is by challenging the accuracy of the count or report, but such challenge is in order on any vote regardless of the character. The poll of a delegation must include the entire delegation. A demand for a poll of a delegation may be withdrawn any time before the poll starts. The Chair of the Convention may defer a poll until the conclusion of a roll call. When a delegation is polled, the delegates in responding to their names are restricted to the bare announcement of their vote and explanations or comments of any character are out of order.

1.4.4.2. Challenges From Floor. Upon demand from the floor by any delegate, the Chair of the Convention shall call a roll of a delegation to determine the number of eligible delegates thereof present.

1.4.5. Committee Reports. When Committees are recognized to report, the Chair of the Committee or their designee may read the report themselves or have it read by the Convention Chair or Convention Secretary. At the conclusion of the reading of the report, the Chair has fifteen (15) minutes in which they may speak to the report or yield time to others to speak. When committee reports are submitted, the question of agreeing to the report is considered as pending. Minority reports from committees must be presented and read immediately following majority reports, and both are then open to debate and amendment, unless the previous question is ordered. When more than one minority report is submitted, all are presented before consideration on the majority report begins, and are taken up in the order presented. The question comes first on minority reports and then on majority report or minority report as amended.

1.4.6. Debate. Priority in recognition for debate is within the discretion of the Chair, but members of the reporting committee take precedence over others desiring

to be heard on a pending committee report. A delegate desiring to interrupt a speaker for a point of inquiry or a point of order shall address the Chair. The Chair of a committee making the report may have fifteen (15) minutes to speak. All other debate shall be limited to five (5) minutes to each speaker. No delegate shall speak twice to the same question unless permission is granted by general consent, and then only if all others who wish to speak have been heard.

1.4.7. Decorum. Delegates and guests are expected to be seated and to refrain from loud conversation during session of the Convention. Aisles and platforms must be kept clear.

1.4.8. Delegates. A delegate announcing that they will not abide by the decision of the Convention is not entitled to participate in its deliberations. Delegates failing to observe Rules of the Convention are subject to expulsion by two-thirds (2/3) vote.

1.4.9. Division. Any delegate may move for a division of the question, and a separate vote on substantive propositions contained in a committee report or any other pending question, and such motion is in order even after the previous question is demanded. A motion to divide the question may ask for a separate vote on any or all substantive propositions contained in the report or question.

1.4.10. Motions. Delegates must secure recognition from the Chair in order to offer a motion, and the Chair may inquire for what purpose the delegate rises, and after hearing the motion, may rule such motion out of order. Once a delegate has spoken in debate on a question, a motion to call the previous question from the same delegate shall be out of order on the same speaking turn. After an order of business is adopted, no motions are admissible unless in order under the pending item of business or at that particular state of the proceedings.

1.4.11. Points of Order. A point of order is used to bring attention to a breach of the rules. Points of order must be made at the time of the breach unless the breach has continuing force and effect. In cases where a breach has continuing force and effect, a point of order may be raised at any time the breach is still in effect. Debate on a question of order is within the discretion of the Chair.

1.4.12. Previous Question. A motion for the previous question ceases debate on a question. The motion requires a second, is not debatable, and cannot be

amended. Calling the question requires a two-thirds (2/3) majority to pass, and if passed the effect is to end debate and move to a vote on the question being considered. When a delegate moves the previous question, such motion is then considered to be the pending question, and the motion which was pending when the previous question was moved is considered to be the previous question.

1.4.13. Recess. A motion to recess is always in order, and not debatable.

1.4.14. Reconsideration. When a motion is decided, any member of the majority may move reconsideration of the motion at the same session of the convention.

1.4.15. Suspension of Rules. A motion to suspend the Rules does not pertain to the Rules in this Bylaw, but to any procedural rules adopted by the Convention or rules specified in the Parliamentary Authority, and such rules may only be suspended for a specific and limited purpose. A motion to suspend the rules may not be amended or reconsidered. Rules contained in these Bylaws may not be suspended unless specifically provided in the Bylaws.

1.4.16. Table. A motion to lay on the table is used to delay consideration of a question, is not debatable, and may not be amended. A motion to remove a question from the table must be made to continue consideration of the question.

1.4.17. Unanimous Consent. Any authorized action may be taken and any proceeding had by unanimous consent regardless of the Rules or pending order of business.

1.4.18. Who is Entitled to Speak. No person who is not a delegate or an alternate who is taking the place of a delegate, shall be permitted to address the convention unless such person has been previously requested to do so by the State Central Committee or by a three-fourths (3/4) vote of the Convention. Unless otherwise fixed by the Convention body, all such speeches shall be limited to three (3) minutes.

1.4.19. Definitions. The terms "notification", "provided in writing", and "written" when occurring throughout the Constitution and/or Bylaws shall include digital and electronic means as well as paper-based means of communication, as

long as it is transmitted to the recipient and not merely posted on a website or bulletin board.

1.4.20. Parliamentary Authority. All procedural matters not directly governed by the NDP Constitution or Bylaws shall be governed by the latest edition of *Robert's Rules of Order*, as most recently revised.

1.5 Voting

1.5.1. Qualifications to Vote. No person shall be permitted to vote in any State Convention unless they have been duly elected and certified as a delegate or unless they have been duly elected and certified as an alternate and are acting in the absence of an elected delegate.

1.5.2. Each Delegate One Vote. All delegates who are found to be duly qualified shall be entitled to one vote on any question coming before the State Convention.

1.5.3. Proxy or Unit Rule. No delegate or alternate shall be permitted to vote by proxy and no delegations shall apply to the Unit Rule.

1.5.4 Method of Voting

1.5.4.1. Roll Call: Announced by Delegation Chair. On roll call of the Counties and Legislative Districts within Counties, the vote of the County or Legislative District shall be announced by the Chair of the County or Legislative District delegation, or in their absence, by the Vice Chair. Delegations not prepared to announce their vote may be passed and called at the end of roll call.

1.5.4.2. Place of Casting Vote. In order to vote, a delegate must sit with their delegation and may not vote from another part of the convention hall and may not deputize another to cast their vote for them.

1.5.4.3. Change of Vote or Abstention. A delegate may decline to vote or may change their vote at any time prior to the announcement of the final result. A delegate proposing to change their vote must rise in their place and personally request the change.

1.5.4.4. Demand for Roll Call. A roll call vote must be ordered on demand of one-fourth (1/4) of the delegates present.

BYLAW 2 - CONGRESSIONAL DISTRICT CAUCUS

2.1 At State Convention

2.1.1. Time and Place. At each State Convention, the State Convention delegates from each Congressional District shall hold a State Convention Congressional District Caucus.

2.1.2. Certification of Delegates Entitled to Vote. Preceding the convening of each State Convention Congressional District Caucus, the Committee on Credentials shall certify to the District Chair the names of all delegates and alternates entitled to representation at such Congressional District Caucus. The list, so certified to the District Chair shall determine the persons entitled to vote on any question which may come before such caucus.

2.1.3. Credentials How Settled. Any dispute concerning the credentials of delegates selected to attend any State Convention Congressional District Caucus shall be determined by the Committee on Credentials, whose ruling shall be final so far as the membership to any Congressional District Caucus is concerned.

2.1.4. Nomination for Presidential Elector. At each State Convention Congressional District Caucus in the presidential election years, the Caucus shall select one person properly affiliated with the Democratic Party and legally eligible to serve for nomination by the State Convention to represent such district as a Presidential Elector in the Electoral College. The Caucus shall recommend one person properly affiliated with the Democratic Party and legally eligible to serve for nomination by the State Convention to represent the State at-large as a Presidential Elector in the Electoral College. The District Chair shall certify such recommendations to the Chair of the Convention Committee to Recommend Nominations of Presidential and Vice Presidential Electors.

2.1.5. State Convention Committee Members. Each State Convention Congressional District Caucus shall fill vacancies for permanent members of the various Convention committees if needed pursuant to Bylaw 1.3.2.

2.2 At State Central Committee

2.2.1. Time and Place. A Congressional District Caucus shall be held in conjunction with each meeting of the SCC.

2.2.2. Members Entitled to Vote. Preceding the convening of a Congressional District Caucus, the Secretary of the SCC may certify to the District Chair the names of all members and alternates of the State Central Committee residing in the district entitled to representation at such Congressional District Caucus. The list so certified to the District Chair shall determine the persons entitled to vote on any question which may come before such caucus.

2.3. At Other Times

A Congressional District Caucus may be held at a time and place to be designated by the Congressional District Chair or at least six (6) congressional delegates qualified as defined in these Bylaws.

2.4 Congressional District Caucus Procedures

2.4.1. Voting. Each Caucus member who is found to be duly qualified to vote at any Congressional District Caucus shall be entitled to one vote on any question coming before such caucus. No Caucus Member shall be permitted to vote by proxy. No delegation shall apply the Unit Rule.

2.4.2. Resolutions. If a Congressional District Caucus wishes to adopt resolutions for presentation to the State Central Committee or the State Convention, it may do so.

2.4.3. Quorum. A quorum shall consist of 25 percent of the membership.

2.4.4. State Rules of Order Govern. In the absence of any Rule governing a situation in a Congressional District Caucus, the Rules of Order then in force as set out in Bylaw Section 1.4 or Bylaw Section 8, as applicable, shall govern the procedure of any Congressional District Caucus.

BYLAW 3 - COUNTY ORGANIZATION

3.1. County Convention. Each county shall conduct a County Convention in the manner prescribed by law and Article IV, Section 6 of the NDP Constitution, complying with any rules or procedures adopted by the State Central Committee as provided in Bylaw 5.1.2.7.

3.2. Election of County Officers. Each County Convention shall elect a County Chair, County Vice Chair, County Secretary, and County Treasurer, and may elect any other officers provided for under the county party constitution or bylaws or as deemed necessary by the County Executive Committee.

3.3. County Executive Committee. The County Executive Committee shall be composed of the elected officers of the county party and any other voting or non-voting members provided for under the county party constitution or bylaws. Meetings of the County Executive Committee may be called by the County Chair or by a majority of the County Executive Committee at such time and place as may be designated in the call. The County Chair shall preside over all County Executive Committee meetings, with the County Vice Chair presiding in the absence of the County Chair. In the event of a vacancy in the offices of both County Chair and County Vice Chair, a County Executive Committee meeting may be called by the State Chair for the purpose of electing a new County Chair.

3.4. County Central Committee. A county party may establish, through the county party constitution or bylaws or by a two-thirds (2/3rds) vote of the County Executive Committee, a County Central Committee to serve as the policy-making body of the county party. Meetings of the County Central Committee may be called by the County Chair or by a majority of the County Executive Committee or as provided in the county party constitution or bylaws, at such time and place as may be designated in the call. The County Chair shall preside over all County Central Committee meetings, with the County Vice Chair presiding in the absence of the County Chair. In the event of a vacancy in the offices of both County Chair and County Vice Chair, a County Central Committee meeting may be called by the State Chair for the purpose of electing a new County Chair.

3.5. County Executive Committee Acting as County Central Committee.

For purposes of the NDP Constitution and Bylaws, if there is no County Central Committee in a county, the County Executive Committee shall act as the County Central Committee.

3.6. County Officer Vacancies. If a county party officer is removed from office, relocates their residence from the county, dies, resigns, or changes party affiliation, a vacancy shall exist. Except as provided in this section for County Chair vacancies, vacancies in county party offices shall be filled through election by the County Central Committee or according to the county party constitution or bylaws.

In the event of the removal of a County Chair by the State Central Committee, the county party shall select a new County Chair within thirty (30) days and immediately notify the State Chair of its selection. In the event of any such vacancy in the office of County Chair continuing for a period of more than thirty (30) days, the State Chair shall have the authority to appoint an acting County Chair who shall hold office until the holding of the next County Convention.

3.7. Gender Representation. The County Chair and County Vice Chair must be of different gender identities.

3.8. County Party Governance. County parties are authorized to adopt a constitution and/or bylaws, provided such governing documents are consistent with the NDP Constitution and Bylaws. Upon adoption or amendment of a constitution and/or bylaws, the county party shall provide such documents to the NDP Rules Committee for review. Lacking any formal constitution and/or bylaws of their own, county parties shall be governed by the applicable provisions of the NDP Constitution and Bylaws.

3.9. Federal Campaign Committees. No county party may establish or operate a separate federal campaign committee except as provided in this section. A county party may establish or operate a federal campaign committee in coordination with the NDP if such county party has demonstrated the ability to comply with any and all recordkeeping and reporting requirements and regulations of the Federal Election Commission. Subject to a joint Memorandum of Understanding with the state party that lists items such as the compliance process the county party will utilize

and the joint fundraising limits/donor process with the state party, then the county party may begin the paperwork to process with the Federal Election Commission to establish or operate a federal campaign committee. No county party shall serve as the entity sponsoring a statewide or federal coordinated campaign.

BYLAW 4 - DEMOCRATIC NATIONAL COMMITTEE

4.1. Election of National Committeepersons. During presidential election years, convention delegates shall elect two (2) members of the Democratic National Committee from Nebraska, the National Committeepersons of different gender identities, who shall serve for a term of four (4) years each and until their successors are elected and qualified. Such four-year term shall begin after the Democratic National Convention.

4.2. State Chair and Vice Chair. In accordance with the Bylaws of the Democratic National Committee, the State Chair and Vice Chair of the Nebraska Democratic Party shall serve as members of the Democratic National Committee for terms concurrent with their terms as State Party officers.

4.3. Other Elected or Appointed Members. Additional elected members of the Democratic National committee are allocated on the basis of population and the Democratic vote for President as stipulated in the Charter and Bylaws of the Democratic Party of the United States. Should an additional member be allocated to Nebraska, the Vice Chair of County Parties would fill that position. The Democratic National Committee has authority, as proscribed in its Charter and Bylaws, to appoint additional members to that body. Such appointed members serve terms as stipulated by the DNC when appointed, but not longer than beyond the day the next National Convention adjourns.

4.4. Vacancies. Any vacancy in such membership of the Democratic National Committee from Nebraska shall be filled for the unexpired term at the next scheduled State Central Committee meeting no sooner than 30 days after the vacancy occurs or at the State Convention, whichever comes first.

4.5. Certification of Elections. Following any election of such State Chair, Vice Chair, or National Committeeperson from Nebraska, the State Chair and State Secretary shall forthwith certify the election of such person or persons to the Secretary of the Democratic National Committee.

BYLAW 5 - STATE CENTRAL COMMITTEE

5.1 Duties and Powers

5.1.1. General Powers. The State Central Committee shall be the permanent agency authorized to act on behalf of the State Nebraska Democratic Party during the intervals between the State Convention. It is a creature of the State Convention and therefore subject to its authority as may be granted to it by the State Convention. Further, it shall also have power and authority to do all things reasonably necessary to promote the success of the Democratic Party in National, State and Local tickets at any general election, and to perform any functions imposed upon it by law or any State Party Convention.

5.1.2. Specific Powers. In addition to the general powers listed above, the State Central Committee shall have the following duties and powers:

5.1.2.1. Raise funds and supervise expenditures of such funds and any funds received from the National Committee for use within the State for the financing of the State Convention, campaign expenses and maintenance of the State Party Office;

5.1.2.2. Maintain a State Office at a location to be determined by the State Central Committee and determine policies, procedures, and legal arrangements for its statewide operation and personnel;

5.1.2.3. Provide appropriate assistance in statewide general election campaigns;

5.1.2.4. Fill vacancies for State or National Office on the Democratic State Ticket occurring by reason of change of party affiliation, death, declination or resignation of any nominee of the Democratic Party within the State;

5.1.2.5. Provide press and radio service, Speaker's bureaus, and organization supervision by supplying literature, speakers and Democratic Party representatives;

5.1.2.6. Be a liaison with Democratic campaigns and coordinate all campaign-related work throughout the State;

5.1.2.7. Establish a timeframe for county parties to hold County Conventions and establish rules and procedures for county conventions as necessary to meet the requirements of state law or the Democratic National Committee, assist in making arrangements for State Conventions, and ensure that all registered Democrats have an opportunity to participate in their County Convention.

5.1.2.8. Make provisions for State Conventions including the selection of time and place, authorization of call and determination, within the terms of applicable statutes, of the representatives of such State Conventions;

5.1.2.9. Make physical arrangements for State Conventions, including hotel reservations, seating for delegates and visitors, granting concessions, adjustment of auditorium to requirements, installation of telephone, public relations and press facilities;

5.1.2.10. Prepare a temporary roll of delegates to State Conventions accepted as prima facie correct pending the reports of the Committee on Credentials;

5.1.2.11. Call and convene a special State Convention composed of delegates duly accredited to the last State Convention for the purpose of transacting any special business; provided at least ten (10) days' notice shall be given by mail to each delegate of the time, place, and purpose of such special State Convention; (The business to be transacted at such State Convention shall be governed by these Bylaws insofar as the same are applicable.)

5.1.2.12. Nominate for election by the Democratic National Committee a proper person to fill any vacancy in the National representation of the Democratic National Committee;

5.1.2.13. Remove by two-thirds (2/3) vote of those attending for good cause, and after two (2) weeks' notice and hearing, any duly elected or appointed party official, including any officer of the NDP, Congressional District Organization, County Party, Affiliated Caucus Organization, or Affiliated Policy Council, Central Committee Member, standing or ad-hoc Committee Member, at any level of the Nebraska Democratic Party who has failed to attend the duties of their office,

who publicly opposes the election of a Party nominee for local, state or national office, who has violated any Code of Conduct adopted by the State Central Committee, who is abusive of their authority, or who engages in other misconduct that calls into question their fitness for office. Publicly opposing a candidate from whom State Party resources have been withheld under Bylaw 7.4 shall not constitute grounds for removal;

5.1.2.14. Cause to be printed or made electronically available, sufficient copies of these Bylaws to distribute one copy to each Delegate and Alternate elected to any Democratic State Convention and to each County Chair, and to supply extra copies thereof to properly interested parties;

5.1.2.15. To create and enforce policy regarding, relating to, or defined in the party platform; provided that any policy created by the State Central Committee that in any way is in conflict or not in accord with the State Party Platform must be presented in writing to the Executive Director or State Party Chair no later than twenty-eight (28) days prior to the next regularly scheduled or special meeting and must be mailed or delivered to each Central Committee Member no later than fourteen (14) days prior to the next regularly scheduled or special meeting at which it may be discussed and voted on; and

5.1.2.16. To create and enforce a Code of Conduct applicable to its members, subsidiary organizations, employees, elected officials, and candidates for office; and provide for confidential investigation of allegations of misconduct injurious to the NDP or its members.

5.2 Composition

5.2.1. Voting Members. The voting member of the State Central Committee shall consist of: all State Executive Committee voting members, two delegates of different gender identities elected by the Legislative District Caucuses at the State Convention, and twenty at-large members appointed by the State Executive Committee with approval by the State Central Committee. Each voting member shall have only one vote at any meeting of the State Central Committee.

5.2.2. Alternates. Each Legislative District Caucus shall elect, at the State Convention, two alternate committee members of different gender identities. These

Alternates are State Central Committee members who shall only be empowered to vote ("seated") in the absence of an elected State Central Committee delegate from their district. Preference on seating between two present Alternates shall be given to whomever preserves gender balance. If either present Alternate would preserve gender balance, then the Alternate to be seated will be determined by agreement of both Alternates or a coin flip.

5.2.3. At-Large Members. The at-large State Central Committee members shall consist of: four tribal members, with one representing each sovereign tribal nation in Nebraska, selected by their tribal councils; five county chairs, representing counties not otherwise represented by the legislative district delegates on the State Central Committee; five Young Democrats (under the age of 36); and six diversity members, representing communities that are underrepresented on the State Central Committee. The at-large State Central Committee members shall be, collectively, gender balanced as equally as possible (determined by gender self-identification). In the case of a non-binary gender member, they shall not be counted as either gender.

5.2.4. Replacement. Delegates and Alternates may be replaced in accordance with the NDP Constitution and Bylaws.

5.2.5. Qualifications. Legislative district delegates and alternates shall be registered Democrats and reside in their respective legislative districts.

5.3 Officers

Officers of the State Central Committee shall be the State Chair, Vice Chair, and the National Committeepersons. These officers shall be nominated by the Nominating Committee. Nominations may be made from the floor by any duly accredited delegate. A majority of the votes cast on such nominations shall be necessary to elect said officers.

Additional officers of the State Central Committee shall be the Vice Chair of County Parties, Congressional District Chairs and Vice Chairs, the State Treasurer and the State Secretary. The Vice Chair of County Parties shall be elected at a caucus of county chairs held at State Convention each midterm election year. The Congressional District Chairs and Vice Chairs shall be elected in their respective Congressional District

Caucuses at each State Convention. The State Treasurer and State Secretary shall be appointed by the State Chair and approved by the State Central Committee.

5.3.1. Assistant State Treasurer. The State Treasurer may appoint an Assistant State Treasurer whose appointment must be approved by the State Chair and the State Executive Committee. The Assistant State Treasurer may be an employee of the Nebraska Democratic Party. The Assistant State Treasurer will perform such duties as are assigned by the State Treasurer or these Bylaws.

5.4 Terms

5.4.1. Members. Members elected to the State Central Committee shall continue in office until their successors are elected at the next succeeding General Election State Convention, except as otherwise provided in Article IV, Section 1(C) of the Constitution, Bylaw 4.1, or Bylaw 5.2.3. Members appointed by the State Executive Committee shall continue in office until their successors are duly appointed and approved. Members appointed by the State Chair serve at the pleasure of the State Chair. Terms for Affiliated Caucus Organization and Affiliated Policy Council representatives are determined by their respective organization or council. However, any member of the Committee ceasing to meet the qualifications of Article III of the Constitution or who shall cease to be an active member of the State Democratic Party shall cease to be a member of the Committee as of the time when such qualifications are not met.

5.4.1.1. Definition of “Active Member”. An active member of the State Democratic Party shall be an individual who evidences their commitment to the party by regular attendance at committee meetings, service on party committees, service in public office, volunteer work on electoral campaigns of party members, work on voter recruitment and registration, financial contributions to the state party and party candidates, or commitments of personal time and resources to the state party organization and its activities.

5.4.2. Officers. Except as provided in Article IV, Section 1(C) of the Constitution and Bylaw 4.1, officers of the State Central Committee shall continue in office until their respective successors are elected consistent with Article IV and Article V of the Constitution.

5.5 Meetings

5.5.1. Time and Place. The newly elected State Central Committee shall hold an organizational meeting immediately after the adjournment of the State Convention. The State Chair shall call at least four (4) regular meetings each year scheduled among the Congressional Districts on an equitable basis in addition to the organizational meeting. The State Chair shall fix the time and place of all such meetings with the approval of the State Central Committee.

A special or additional meeting of the State Central Committee may be called by the State Chair or upon petition of fifteen (15) percent of State Central Committee members with at least three (3) members from each Congressional District represented on the petition. Such petition to hold a special or additional meeting shall be delivered to the State Secretary and the State Chair. The State Chair shall fix the time and place of such special meeting within ten (10) days of receipt of the petition, and unless otherwise specified in the petition, the special or additional meeting shall be held no more than thirty (30) days following receipt of the petition.

5.5.2. Quorum. Quorum for a State Central Committee meeting is forty-nine (49) members excluding unseated alternates.

5.5.3. Minutes. In addition to all other requirements, minutes of State Central Committee meetings shall include a list of those delegates and alternates attending and a list of those delegates absent with prior notice.

5.6 NDP Employees

5.6.1. The office of Executive Director of the Nebraska Democratic Party shall exist to execute the daily affairs of the Party and assist the party officers and Committees in the execution of their respective duties. The Executive Director shall be hired by the State Chair with the approval of the State Executive Committee and with notification provided within twenty-four hours to the State Central Committee. The Executive Director shall be the Assistant Secretary and Assistant State Treasurer of the Party unless otherwise directed by the State Chair or State Central Committee. The Executive Director shall perform such other duties as prescribed by the State Chair, the Constitution, or these Bylaws.

5.6.2. The State Chair may designate such paid positions as are deemed necessary. The existence of such positions requires the approval of the State Central Committee.

5.6.3. No NDP employee may hold elected office other than a party office, run a political campaign as a paid staff member for any office, or run for any office other than a party office while employed by the NDP.

5.7 Affiliated Caucus Organizations and Affiliated Policy Councils

5.7.1. Recognition and Qualification. Affiliated Caucus Organizations (ACOs) and Affiliated Policy Councils (APCs) shall be recognized to aid and assist the Nebraska Democratic Party in organizing a specific constituency for the benefit of the party and its candidates for elected office. An ACO or APC must be an organized group of Nebraska Democrats with members from every Congressional District who support the NDP and its policies and objectives. Membership of an ACO must be based off one or more immutable characteristics shared by its members. Membership of an ACO or APC shall include registered Democrats and may include persons who will register as Democrats upon becoming eligible to vote. Recognition of an ACO or APC by the State Central Committee shall be dependent upon the quality and integrity of the ACO or APC's governing documents, the ACO or APC's effectiveness and the ACO or APC's strategic importance to the long-term growth and success of the Nebraska Democratic Party.

5.7.2. Recognition Procedures. Initial application for Recognition from a prospective ACO or APC shall be referred to the Rules Committee to review. The Committee shall: review the prospect's governing documents and meet with its leadership; ensure that the prospect provides a functional, democratic process for amending its documents, electing its officers, selecting its designated representative on the State Executive Committee and/or State Central Committee, and achieving its purpose; and make a recommendation to the State Central Committee on whether to recognize the prospect as an ACO or APC. Recognition must be approved by a majority vote of the State Central Committee. Recognition of an ACO or APC shall run concurrently with the biennial term of a State Central Committee.

5.7.3. Responsibilities. ACOs or APCs shall take no public position that is inconsistent with the NDP Platform and shall not publicly endorse a candidate who is not a registered Democrat in any election. Each ACO shall abide by state and federal election laws regarding political committees. Each ACO or APC must agree to give its membership list (including names and contact information) to the State Party or contact its members on behalf of the State Party when requested. Each ACO or APC must provide the State Party with its officers' names and contact information. Each ACO or APC shall designate the State Chair or the State Chair's designee as an administrator for any websites or social media accounts maintained by the ACO or APC.

5.7.4. Representation. Upon selection of an ACO's or APC's designated representative on the State Executive Committee and/or State Central Committee, the ACO or APC shall notify the State Secretary of the name and contact information of such designated representative. Two absences from meetings of the State Executive Committee or State Central Committee during a biennial term by the designated representative or alternate will result in suspension of the ACO or APC pending a Review by the State Rules Committee.

5.7.5. Continued Recognition. Recognition shall be automatically renewed for a new biennial term upon the ACO's or APC's submission of its current organizational documents to the State Rules Committee, updated names and contact information of its officers to the State Secretary, and a report to the State Central Committee summarizing their accomplishments over the last biennial period and plans for the upcoming biennial period by the first meeting of the State Central Committee. The organizational meeting of a new State Central Committee shall not be considered the "first meeting" for purposes of this rule. Failure to provide the appropriate data shall cause the ACO's or APC's continued recognition to be suspended pending a Review by the State Rules Committee. Any previously existing ACO that is no longer eligible to be recognized as an ACO under Bylaw 5.7.1 shall be automatically recognized as an APC for a new biennial term, provided compliance with the submission requirements of this Bylaw.

5.7.6. Review. Recognition of an ACO or APC may be reviewed by the State Rules Committee as provided in these Bylaws or at the request of the State Central Committee to determine whether an ACO or APC meets all requirements of these

Bylaws while complying with the ACO or APC's own organizational documents. The Rules Committee shall make a recommendation on continuing recognition of the ACO or APC to the State Central Committee. Revocation of recognition of an ACO or APC must be approved by a majority vote of the State Central Committee.

5.8 Officer Vacancies

The State Central Committee shall fill vacancies in the offices of State Chair, Vice Chair, and National Committee Members if such vacancies occur between Conventions. The methods to do so are:

5.8.1. State Chair. The Vice Chair or the Vice Chair of County Parties, as provided in the NDP Constitution, will assume the duties of the State Chair on a temporary basis until a new Chair is elected. Election of a new Chair shall occur at the first regular or special State Central Committee meeting no sooner than 30 days after the vacancy occurs or at the State Convention, whichever comes first.

5.8.2. Vice Chair and National Committee Members. Election of any of these officers shall occur at the first regular or special State Central Committee meeting no sooner than 30 days after the vacancy occurs or at the State Convention, whichever comes first.

5.8.3. Vacancy Election Procedures. Prior to any vacancy election by the State Central Committee, procedures for such election shall be adopted by the State Central Committee.

5.9 State Executive Committee

5.9.1. Duties and Powers. The State Executive Committee shall be authorized to act on behalf of the State Central Committee during intervals between meetings of the State Central Committee, shall have the power and authority to do all things reasonably necessary to promote the success of the Democratic National, State and Local election tickets at any general election and the power to perform any functions imposed upon it by law or by the State Central Committee.

5.9.2. Terms. Except as provided in Article IV, Section 1(C) of the Constitution and Bylaw 4.1, members of the State Executive Committee shall

continue in office until their successors are duly elected or appointed. However, all members of the Committee ceasing to meet the qualifications of Article III of the Constitution shall cease to be members of the Committee as of the time when such qualifications are not met.

5.9.3. Quorum. Quorum for the State Executive Committee shall be fifty percent (50%) of the voting membership.

5.9.4. Non-Voting Members. Non-voting members of the State Executive Committee shall include (a) each statewide and federal elected office holder who is a registered Democrat, and (b) one (1) mayor of the largest city having a registered Democrat as mayor from each Congressional District. Each of these elected office-holders may designate an individual to represent him or her on the State Executive Committee if they are unable to actively participate at a meeting.

5.9.5. Meetings. The State Executive Committee shall hold regular meetings at least quarterly at the call of the State Chair who shall fix the time and place of all such meetings. A special meeting of the State Executive Committee may be called by the State Chair or upon petition of any five (5) voting members of the State Executive Committee. Said petition to hold a special meeting shall be delivered to the State Secretary and the State Chair. The State Chair shall fix the time and place of said special meeting within three (3) days of receipt of the petition, and unless otherwise specified in the petition, the special meeting shall be held no more than ten (10) days following receipt of the petition.

5.9.6. Vacancies. Vacancies for any reason on the State Executive Committee shall be filled in accordance with the provisions of the Constitution, see also Bylaw 5.1.2.12.

5.9.7. Awards. The State Chair may appoint a selection committee to make nominations for all state party awards. Nominations shall be solicited from, including but not limited to, the State Central Committee and the Executive Committee. All awards made on behalf of or in the name of the Nebraska Democratic Party shall be approved by the Executive Committee prior to the announcement of the award. A listing of award recipients and selection procedures shall be kept on file at the State Party Office.

5.10 Committees

5.10.1. Standing Committees.

- (a) Standing Committees of the Nebraska Democratic Party shall include:
Platform and Resolutions; Rules; State Convention; Finance; Nominating;
Archives and Historical Preservation; Technology; and Audit and Review;
- (b) Committee Chairs shall be appointed by the incoming State Chair with the approval of the State Central Committee. Standing Committee Chairs shall continue in office until their successors are duly appointed and approved. Chairs should be appointed no later than at the first Central Committee meeting following the General Election;
- (c) Committee members shall be elected by the authorized members attending the Congressional District Caucus at the first regular meeting of the State Central Committee following the Convention. The organizational meeting of a new State Central Committee shall not be considered the first regular meeting for purposes of this rule.

5.10.1.1. Platform and Resolutions. The Platform and Resolutions Committee of the Nebraska Democratic Party shall develop the Party's platform and resolutions in a timely, orderly, and open process, for presentation and action at each State Convention. The Committee is also responsible for a timely, orderly, and open process for presenting resolutions offered for action at meetings of the State Central Committee.

5.10.1.1.1. Composition. Each Congressional District Caucus shall elect eight members, with no one gender identity representing more than four members, to serve on the Platform and Resolutions Committee. Committee members, including the Committee Chair, are not automatic Convention delegates, but are encouraged to seek such election.

5.10.1.1.2. Hearings. The committee shall conduct at least one platform hearing in each of the State's Congressional Districts during the general election year and county chairs shall be informed of such hearings. A final platform hearing shall be conducted in conjunction with the State Convention.

5.10.1.1.3. Platform Report. The committee shall submit a preliminary platform (exclusive of changes proposed following the convention hearing conducted pursuant to Rule 5.10.1.1.2), including minority reports, in writing to the State Chair not later than three days following the last County Convention in the year of the biennial State Convention. The Committee's Final Report to the convention delegates at the State Convention shall include the proposed Platform and resolutions recommended for adoption, those forwarded without recommendation and a list of those rejected by the committee. A two-thirds (2/3) vote of the Convention Body shall be required for consideration of a resolution not previously submitted to the Committee. If a two-thirds (2/3) vote is not given, the presiding officer may refer the matter to the Committee for report and action at the next regular meeting of the State Central Committee.

5.10.1.1.4. Petition. Platform items or resolutions rejected by the Committee may be considered by the Convention body provided that a written petition, containing the substitute language, signed by at least 20 percent of the Convention delegates present when quorum was established, is distributed to the Convention prior to debate on the platform. A petition must contain signatures from each Congressional District with no Congressional District represented by more than 50 percent of said signatures.

5.10.1.1.5. SCC Resolutions.

5.10.1.1.5.1. Submitting Resolutions. Resolutions shall be submitted to the committee for report and consideration at the next State Central Committee meeting.

5.10.1.1.5.2. Report and Consideration. At each State Central Committee meeting, the committee shall present all resolutions submitted to it, and any resolutions it originates for consideration by the State Central Committee. A two-thirds (2/3) vote of the State Central Committee shall be required for consideration of a resolution not submitted to the committee at least twenty-one (21) days prior to the State Central Committee meeting.

5.10.1.1.5.3. Resolution Submitter. The submitter must be either a member of the State Central Committee or, upon approval of an Affiliated Organization's voting membership or executive committee, the designated

representative of an Affiliated Organization as defined by Article VI of the NDP Constitution.

5.10.1.1.5.4. Resolution Amendments. The committee shall be authorized to review the resolution for grammar, spelling, punctuation, enumeration, technical, and conforming changes and may make these types of changes that retain the meaning of the language. Prior to the presentation of the resolutions to the SCC, the committee may amend a resolution with substantive changes with the approval of the submitter. The committee may propose additional amendments in its report which shall be considered by the State Central Committee immediately following the introduction of the resolution.

5.10.1.1.5.5. Recommendations on Resolutions. The committee may include in its report a recommendation on each resolution.

5.10.1.2. Rules. The Rules Committee of the Nebraska Democratic Party shall prepare recommendations on: amendments to the Party Constitution; amendments to the Party Bylaws; the rules and order of business for the State Convention; and shall perform such other duties as assigned by the State Chair or State Central Committee. The Rules Committee shall make recommendations to the State Central Committee regarding Affiliated Caucus Organization and Affiliated Policy Council recognition following the Rules Committee's initial or requested review of ACOs or APCs.

5.10.1.2.1. Composition. Each Congressional District Caucus shall elect four members, with no one gender identity representing more than two members, to serve on the Rules Committee. Committee members, including the Committee Chair, are not automatic convention delegates, but are encouraged to seek election.

5.10.1.2.2. Rules Committee Reports. The Rules Committee shall provide the rules and order of business for State Convention in writing to the delegates prior to the convening of the convention. Written notice of proposed changes to the NDP Constitution and Bylaws shall be provided as required under Article VII of the Constitution or Bylaw 9, respectively. A two-thirds (2/3) vote of the Convention Body shall be required for consideration of a proposed

amendment to a Section of the Bylaws that was not previously submitted to the Rules Committee.

5.10.1.3. State Convention. The State Convention Committee of the Nebraska Democratic Party shall: select and nominate qualified people to serve as Permanent Officers of the State Convention; serve as the site selection and arrangements committee and make recommendations on the site and arrangements for approval by the State Central Committee.

5.10.1.3.1. Composition. Each Congressional District Caucus shall elect four members, with no one gender identity representing more than two members, to serve on the State Convention Committee. The State Chair may appoint additional members to the Committee necessary to its function once a Convention site has been approved. Committee members, including the Committee Chair, are not automatic Convention delegates, but are encouraged to seek such election.

5.10.1.3.2. Reports. The State Convention Committee shall make its recommendation on a site for State Convention in accordance with the Bylaws of the Party one year in advance of the Convention, if possible. The Committee's final report on the nomination of Permanent Convention Officers shall be presented at State Convention.

5.10.1.4. Nominating. The Nominating Committee of the Nebraska Democratic Party shall solicit and encourage qualified people to serve in the offices of State Chair, Vice Chair, and National Committeepersons and conduct the nominating proceedings at the appropriate State Convention or State Central Committee meeting. Nominations for these offices may also be made from the floor by any duly accredited delegate.

5.10.1.4.1. Composition. Each Congressional District Caucus shall elect four members, with no one gender identity representing more than two members, to serve on the Nominating Committee. Committee members, including the Committee Chair, are not automatic Convention delegates, but are encouraged to seek such election.

5.10.1.4.2. Reports. The Nominating Committee shall report the nomination of the State Chair, Vice Chair, and National Committeepersons at the appropriate meeting of the State Central Committee or State Convention. In the case of any vacancy in such offices, such vacancy shall be filled at the next scheduled State Central Committee meeting no sooner than 30 days after the vacancy occurs or at the State Convention, whichever comes first.

5.10.1.5. Finance. The Finance Committee of the Nebraska Democratic Party shall be responsible for the development and implementation of an annual finance plan to include the evaluation of all fundraising activities and events.

5.10.1.5.1. Composition. The Finance Committee shall be composed of at least one individual from each Congressional District appointed by the State Chair.

5.10.1.5.2. Reports. The Finance Committee shall submit an annual plan for fundraising to the State Central Committee no later than the end of the first quarter of each calendar year and shall provide for a report on said fundraising at each meeting of the State Central Committee.

5.10.1.6. Archives and Historical Preservation. The Archives and Historical Preservation Committee shall be responsible for gathering, collecting, indexing, organizing, and preserving the documents, data, and materials relating to the history and activities of the Nebraska Democratic Party in whatever form or medium it exists or may be available for the purpose of insuring that an accurate record of the Party's history and activities is preserved for future reference or edification.

5.10.1.6.1. Composition. The Archives and Historical Preservation Committee shall be composed of at least one individual from each Congressional District appointed by the State Chair.

5.10.1.7. Technology. The Technology Committee shall provide feedback on new technology proposals, oversee NDP technology security and annually review the state of NDP technology - recommending changes as new technology becomes available and as prices change.

5.10.1.7.1. Definition. The term "technology" shall include all hardware, software, servers, and internet use of computers (desktop, notebook, handheld devices, and accessories), and shall include webpage design and function, central file and record maintenance, use of internet-based resources, and electronic mail (email) communications.

5.10.1.7.2. Composition. Each Congressional District Caucus shall elect four members, with no one gender identity representing more than two members, to serve on the Technology Committee. Those elected shall be familiar with new technologies and technology issues or have the time and commitment to research relevant technology issues. The Committee Chair may appoint other non-voting members, including NDP staff, to further the goals of the committee.

5.10.1.7.3. Reports. The Technology Committee shall provide a written report directly to the SEC and SCC and to the group making the technology proposals. A written "State of Technology Report" shall be provided to the SCC at their 4th quarter meeting each year.

5.10.1.8. Audit and Review. The Audit & Review Committee shall review expenditures by the Nebraska Democratic Party to ensure that expenditures comply with the budget or are approved by the State Central Committee. The Committee shall have full access to all financial records.

5.10.1.8.1. Composition. Each Congressional District Caucus shall elect two members of different gender identities to serve on the Audit & Review Committee. Those elected shall be familiar with general accounting practices and principles. The Committee Chair may appoint other non-voting members to further the goals of the Committee.

5.10.1.8.2. Reviews and Reports. The Committee may review records at any time and make necessary recommendations to the State Central Committee, State Executive Committee or Party Officers. A Full Review shall be conducted for a two-year period beginning on January 1 of an odd numbered year through December 31 of an even numbered year. The Committee shall present a report and findings of its Full Review to the State Central Committee no later than January 1 in the following even numbered year. The report shall

recommend whether an additional outside audit is needed and what type of audit is needed.

5.10.2. Minority Reports. The report of the minority of the members of any Standing Committee shall be considered if signed by one-third of the members of the Standing Committee and offered as a substitute for majority report.

5.10.3. Special Committees. The State Chair, or when necessary, The Vice Chair or one of the National Committee Representatives, may establish any special committee as deemed necessary to carry out the functions of the party. Special committees must be approved by the State Central Committee; provided, however, that a Special Committee formed for the purpose of investigating alleged misconduct injurious to the NDP or its members may be authorized to conduct such investigation, and report its existence and/or recommendations at the next State Central Committee meeting. Special Committees should be of limited duration and exist for a specific purpose or goal. Membership on a special committee should be relevant to the purpose of the committee and must include representation from all Congressional Districts.

5.11 Handling of State Party Finances

5.11.1. Treasurer to Deposit and Control all Funds.

5.11.1.1. All monies received as contributions, donations, dues, or otherwise by or for the State Central Committee or any club or association organized or operated under its express authority shall be paid to and accounted for by the State Treasurer, who shall deposit all said funds in a bank or banks in the name of the Nebraska State Central Committee.

5.11.1.2. All funds deposited to any bank account of the Nebraska State Central Committee shall be withdrawn only on vouchers signed by the State Treasurer or Assistant State Treasurer.

5.11.2. Approval of Payments by State Chair.

5.11.2.1. The State Treasurer or Assistant State Treasurer shall only pay out funds of the State Central Committee on itemized statements which bear the

signed approval of the State Chair or the Vice Chair, if designated in writing by the State Chair to approve the payment of such accounts.

5.11.2.2. The State Chair or Vice Chair shall not approve the payment of any statement which is submitted contrary to the provisions of these Bylaws and unless in the opinion of the approving officer reasonably exercised such statement represents services, merchandise, supplies, donations, or loans properly obtained or used and applied or to be so used and applied for the promotion of the welfare of the Democratic Party in Nebraska or the nation.

5.11.2.3. Dual Signature Requirement. Any check or negotiable instrument of over \$1,000.00 drawn on any account of the Nebraska Democratic Party shall require the approval of two persons authorized by the State Central Committee. The approval may be the signatures of the authorized persons on the check or negotiable instrument or on a document of payment authority to issue such check or negotiable instrument.

5.11.3. Bonding of Treasurer. At the discretion of the State Central Committee, the State Treasurer shall be bonded by a surety company in the sum of \$25,000, said bond to be approved by the State Chair, by the State Executive Committee or State Central Committee.

5.11.4. Salaries, Wages, Commissions.

5.11.4.1. No salaries or wages to be paid for a period of over two (2) months shall be paid to any person without previous authorization by the State Central Committee or the State Executive Committee.

5.11.4.2. No commission for collection of funds or performance of service shall be paid to any person unless the payment of such commission has been previously authorized by the State Central Committee or the State Executive Committee.

5.11.5. Treasurer's Reports. Quarterly reports of receipts and expenditures shall be made by the State Treasurer to the State Chair, who shall make the same available to the State Central Committee and the State Executive Committee.

5.11.6. Audits and Reviews. The State Central Committee shall have the right to adopt recommendations and reports of the Audit and Review Committee or of an outside independent auditor.

5.11.7. Voluntary Contributions. Contributions to the Democratic Party in Nebraska or any of its authorized agencies shall always be solicited and received on a strictly voluntary basis.

5.12 Coordinated Campaigns

5.12.1. Definition. The Coordinated Campaign is a political committee affiliated with the Nebraska Democratic Party through the Nebraska Democratic State Central Committee. Its purpose shall be to conduct Voter Registration, Voter Identification, Get Out the Vote and other activities consistent with the guidelines established by the Federal Election Commission, State Accountability and Disclosure Commission, and the Nebraska Democratic Party for candidate campaigns in the State's various political subdivisions including, but not limited to Federal, State and Legislative District campaigns.

5.12.2. Powers. The Coordinated Campaign shall be empowered to raise and expend funds, conduct campaign activities, enter into contracts and generally conduct business in furtherance of its defined purpose. The Coordinated Campaign, however, shall not have the authority to obligate financially or otherwise, the Nebraska Democratic Party, the State Executive Committee or State Central Committee without prior approval of a majority vote of the State Executive Committee.

5.12.3. Governance. The Coordinated Campaign shall have the authority to create its own structure with the State Party Chair and their designate as Director, and to establish its own policies and procedures; however, the governing body of the Coordinated Campaign shall include the State Party Chair, National Committeepersons, and other State Party Executive Committee members, appointed by the State Party Chair, necessary to provide representation from each Congressional District.

5.12.4. Reporting. The Coordinated Campaign shall report to the State Central Committee concerning its activities at each regularly scheduled meeting of

the SCC or at the special request of the same.

5.12.5. Accounting. The Coordinated Campaign shall account for all of its income and expenditures to the SCC on an annual basis and shall update the SCC concerning its funds at each regularly scheduled SCC meeting or upon the special request of the same.

5.12.6. Nature of Reporting or Accounting. Nothing in the reporting or accounting provisions of these Bylaws shall be construed to include such detail of financial or strategic operations that the proprietary interests or operations of participating campaigns would be compromised or made available to opposing campaigns or candidates.

BYLAW 6 - ELIGIBILITY FOR BALLOT

6.1. It is contrary to the policy of the Nebraska Democratic Party for the name of any person to be placed upon the primary ballot of the Democratic Party as a candidate for nomination, election, or preferential vote in any state or county primary election if such a person is not affiliated with the Democratic Party. Further the name of no such person should be placed upon the primary ballot of the Democratic Party as a candidate for nomination, election or preferential vote in any state or county primary election if such person has announced their intention of being a candidate for public office on the ticket of any other than the Democratic Party concurrently with being a candidate for public office on the ticket of the Democratic Party.

6.2. In the absence of any statute specifically denying the right of the Nebraska Democratic Party to determine the names of those who may be or may not be placed by the Secretary of the State or a proper County official on the Democratic primary ballot at any primary election held within the State of Nebraska (a) no person shall be permitted to file or be filed on a primary election ballot of the Democratic Party as a candidate for nomination, election, or preferential vote, in a state or county primary election who is not affiliated with the Democratic Party, and (b) no person shall be permitted to file or be filed on a primary ballot of the Democratic Party as a candidate for nomination, election, or preferential vote who has announced their intention to be a candidate for public office on the ticket of any political party other than the Democratic Party concurrently with being a candidate for public office on the ticket of the Democratic Party.

BYLAW 7 - SUPPORT OF CANDIDATES AND ELECTED OFFICIALS

7.1. Purpose. The primary purpose of the Nebraska Democratic Party is to elect Democrats to partisan and non-partisan offices in Nebraska. The Nebraska Democratic Party will provide support in appropriate forms to Democrats running for office and to Democratic elected officials.

7.2. Party Resources. Party resources are those materials, physical or intellectual, that are produced by the Nebraska Democratic Party or on its behalf or at its request and which are funded by the Nebraska Democratic Party. Party resources also include staff members hired by the Nebraska Democratic Party.

7.2.1. Party Resources are to be used to promote the success of the Nebraska Democratic Party and its candidates and elected officials. Resources are not an entitlement to any candidate, elected official, county party, vendor, Affiliated Caucus Organization, or Affiliated Policy Council. The State Chair or the Chair's designee shall determine the allocation of party resources subject to review and direction by the State Central Committee or State Executive Committee.

7.3. Endorsement and Support.

7.3.1. Defined. Support by the Nebraska Democratic Party means the public recommendation and support of a Democrat running for office or a Democratic Elected Official and does not imply the equitable use of party resources.

7.3.2. Endorsement Given. All Democratic elected officials and candidates should expect the support of the NDP unless the State Central Committee votes to withhold party resources as provided in Bylaw 7.4.

7.3.3. Endorsement of non-Democrats. The State Central Committee may vote to endorse and provide party resources to a candidate who is not a member of the Nebraska Democratic Party provided they are running in an election without a Democratic candidate or against a Democratic candidate from whom party resources have been withheld under Bylaw 7.4.

7.3.4. Endorsement of Ballot Questions. The State Central Committee may vote to endorse and/or provide party resources in support or opposition to a ballot question.

7.4. Withholding Resources. Under certain extraordinary circumstances party resources may be withheld from a Democratic candidate, elected official, vendor, County Party, Affiliated Caucus Organization, or Affiliated Policy Council.

7.4.1. These extraordinary circumstances may include, but shall not be limited to:

- a. A candidate whose opponent is an incumbent Democrat
- b. A candidate who has not been an active Democrat
- c. A candidate whose campaign organization is dominated by and supported by other political parties
- d. A candidate who has failed to report their financial status to the Federal Election Commission or the Nebraska Accountability and Disclosure Commission
- e. A candidate or elected official who violates any Code of Conduct adopted pursuant to Bylaw 5.1.2.16
- f. A candidate or elected official whose public votes or positions are egregious and contrary to the deeply held values of the Nebraska Democratic Party
- g. Other actions that compromise the goals, strategy, policy, or integrity of the Nebraska Democratic Party.

7.4.2. A motion to withhold party resources from a candidate, elected official, vendor, County Party, Affiliated Caucus Organization, or Affiliated Policy Council shall be in order at any State Central Committee meeting provided such motion is brought by: the State Chair; the State Executive Committee; on behalf of any Affiliated Caucus Organization or Affiliated Policy Council; or by petition of at least 10 percent of the members of the State Central Committee. The motion requires a two-thirds ($\frac{2}{3}$) vote by the State Central Committee to be adopted.

7.4.3. If an emergency situation exists that could be detrimental to the Nebraska Democratic Party, the State Chair shall have the authority to temporarily withhold party resources, provided that the State Executive Committee meets as soon as

practicable to affirm the Chair's decision by majority vote, and that the motion to withhold party resources is brought for a vote at the next State Central Committee meeting which shall require a two-thirds ($\frac{2}{3}$) vote to ratify the decision of the State Chair.

BYLAW 8 - RULES OF ORDER

8.1. NDP Committees, Organizations and Affiliates. The Rules of Order in this Bylaw pertain to Meetings of any Committee, Organization or Affiliate (each referred to as "Group") of the Nebraska Democratic Party unless a Group adopts a written set of Rules of Order for its conduct of business in meetings. These Rules of Order do not pertain to the State Convention (See Bylaw 1). In this Bylaw members of any such Group are referred to as "members" even though the Group's members may have a different title.

8.2. Motions and Resolutions. Members must secure recognition from the Chair in order to offer a motion, and the Chair may inquire for what purpose the member rises, and after hearing the motion, may rule such motion out of order. Once a member has spoken in debate on a question, a motion to call the previous question from the same member shall be out of order on the same speaking turn. After an order of business is adopted, no motions are admissible unless in order under the pending item of business or at that particular state of the proceedings. Motions may be stated orally or in writing. Resolutions must be submitted in writing.

8.3. Amendments. Amendments to any motion may be made orally or in writing and must be germane to the propositions to which offered. Amendments to Resolutions must be in writing and germane to the Resolution being offered. Majority and minority reports from committees are subject to amendment from the floor.

8.4. Debate. Priority in recognition for debate is within the discretion of the Chair, but members of the reporting committee take precedence over others desiring to be heard on a pending committee report. A member desiring to interrupt a speaker for a point of inquiry or a point of order shall address the Chair. Debate is not in order during roll call vote while a call is pending. Debate may be limited at the discretion of the Chair; however, a simple motion to extend the debate is in order.

8.5. Committee Reports. When Committees are recognized to report, the Chair of the Committee may read the report themselves or have it read by the Secretary.

When committee reports are submitted, the question of agreeing to the report is considered as pending. Minority reports from committees must be presented and read immediately following majority reports, and both are then open to debate and amendment. When more than one minority report is submitted, all are presented before consideration on the majority report begins, and are taken up in the order presented. The question comes first on minority reports and then on majority report or minority report as amended.

8.6. Division. Any member may move for a division of the question, and a separate vote on substantive propositions contained in a committee report or any other pending question, and such motion is in order even after the previous question is demanded. A motion to divide the question may ask for a separate vote on any or all substantive propositions contained in the report or question.

8.7. Points of Order. A point of order is used to bring attention to a breach of the rules. Points of order must be made at the time of the breach unless the breach has continuing force and effect. In cases where a breach has continuing force and effect, a point of order may be raised any time the breach is still in effect. Debate on a question of order is within the discretion of the Chair.

8.8. Previous Question. A motion for the previous question is not subject to debate or amendment. The motion requires a second, is not debatable, and cannot be amended. Calling the question requires a two-thirds (2/3) majority to pass, and if passed the effect is to end debate and move to vote on the question being considered. When a member moves the previous question, such motion is then considered to be the pending question, and the motion which was pending when the previous question was moved is considered to be the previous question.

8.9. Reconsideration. When a motion is decided, any member of the majority may move reconsideration of the motion at the same meeting of the Group.

8.10. Delay or end consideration of a Question

8.10.1. Table. A motion to lay on the table is used to delay consideration of a question, is not debatable, and may not be amended. A motion to remove a question from the table must be made to continue consideration of the question.

8.10.2. Postpone to a Time Certain. A motion to postpone is used to delay consideration of a question to a later time. A time certain to resume consideration must be included in such a motion. The motion is debatable, may be amended, and requires a simple majority to pass.

8.10.3. Postpone Indefinitely. A motion to postpone indefinitely is used to defeat a question without taking a direct vote on the question. The motion is debatable, but may not be amended.

8.11. Recess. A motion to recess is always in order, and not debatable.

8.12. Motion to Adjourn. A motion to adjourn or a motion to adjourn to meet at a designated time and/or date may be made at any time recognition is secured for that purpose, but is not in order during a roll call. A simple motion to adjourn is not debatable and may not be laid on the table. A motion to adjourn at a certain time is debatable and subject to amendment. A motion to adjourn to a day and/or time certain or to meet at another place is in order, is debatable and amendable. All motions to adjourn are decided by a majority vote.

8.13. Decorum. Members and guests are expected to be seated and to refrain from loud conversation during a meeting.

8.14. Suspension of Rules. A motion to suspend the Rules does not pertain to the Rules in this Bylaw but to any procedural rules adopted by a Group or rules specified in the Parliamentary Authority, and such rules may only be suspended for a specific and limited purpose. A motion to suspend the rules is not debatable, requires a two-thirds (2/3) majority, and may not be amended or reconsidered.

8.15. Unanimous Consent. Any authorized action may be taken and any proceeding had by unanimous consent regardless of the Rules or pending order of business.

8.16. Who is Entitled to Speak. A person who is not a member of a Group shall not be permitted to address the Group in any meeting unless such person is given permission to do so by the Chair or by unanimous consent of the members present.

8.17. Electronic Meetings. Unless specifically prohibited in governing documents, meetings may be convened or attended using electronic means such as

teleconference or video conference, at the discretion of the chair. The meeting's organizer shall inform all members of the means and method of electronically attending the meeting.

8.18. Definitions. The terms "notification", "provided in writing", and "written" when occurring throughout the Constitution and/or Bylaws shall include digital and electronic means as well as paper-based means of communication, as long as it is transmitted to the recipient and not merely posted on a website or bulletin board.

8.19. Parliamentary Authority. All procedural matters for any Group not directly governed by the NDP Constitution or Bylaws shall be governed by the latest edition of *Roberts Rules of Order*, as most recently revised.

BYLAW 9 - AMENDMENT OF THE BYLAWS

9.1. Any Bylaw may be amended by a majority of votes cast by delegates assembled in State Convention.

9.2. Any Section contained in Bylaw 5, State Central Committee, may be amended by a majority of the votes cast by members of the State Central Committee at any meeting of the State Central Committee provided ten (10) days written notice of the proposed rule change has been given to members of the State Central Committee. A two-thirds vote of the State Central Committee shall be required for consideration of a proposed amendment to a Section contained in Bylaw 5 that was not previously submitted to the Rules Committee.